

		Here, Plaintiff has shown the parties entered into the settlement agreement and agreed it would be enforceable pursuant to section 664.6. Moreover, the parties stipulated and the court agreed to retain jurisdiction to enforce the agreement. Plaintiff also has shown Defendants breached the settlement agreement. Defendants have not filed any opposition to this motion. The court therefore finds Plaintiff satisfied the requirements of section 664.6 and Defendants breached the agreement warranting this motion to enforce the settlement. Based on the foregoing, the motion is GRANTED and the court will enter judgment against Defendants based on the parties' settlement agreement. Plaintiff's counsel is ordered to submit a proposed judgment for the court's signature. Notwithstanding the foregoing, Plaintiff's request for an award of attorney fees and costs is DENIED WITHOUT PREJUDICE. Although the parties' settlement agreement authorizes an award of attorney fees for enforcing its terms, the motion does not request any specific amount of attorney fees or costs nor does it provide any evidence to support an award in any particular amount, such as a declaration describing the work performed and hourly rates or billing statements. Plaintiff's counsel is ordered to give notice of this ruling.
7.	<i>Feng vs. Chen</i> <i>2026-01593722</i>	Before the Court is the petition by petitioner Jing Feng (Petitioner) for release of mechanic's lien. As more fully set forth below, the petition is DENIED WITHOUT PREJUDICE. Civil Code section 8486, subdivision (b), states, "The petitioner shall serve a copy of the petition and a notice of hearing on the claimant at least 15 days before the hearing. Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108." Cal. Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days before the hearing. Here, there is proof of service on file for either the petition or notice of hearing. Moreover, the petition is deficient as it fails to include the information required by Civil Code section 8484, which states as follows:

		"A petition for a release order shall be verified and shall allege all of the following: "(a) The date of recordation of the claim of lien. A certified copy of the claim of lien shall be attached to the petition. "(b) The county in which the claim of lien is recorded. "(c) The book and page or series number of the place in the official records where the claim of lien is recorded. "(d) The legal description of the property subject to the claim of lien. "(e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired. "(f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found. "(g) Whether an action to enforce the lien is pending. "(h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien." Petitioner also fails to cite any statutory or case law authority to support the petition or any of the assertions made therein. Finally, it appears the petition may be moot as respondent Gui Xing Chen filed a declaration stating he recorded a release of the lien at issue. A copy of that release is attached to his declaration. Based on the foregoing, the petition is DENIED WITHOUT PREJUDICE. Petitioner is ordered to give notice of this ruling.
8.	<i>Squires Lumber Company vs. McGee Contracting Inc.</i> 2023-01300636	Before the court is the motion of plaintiff and judgment creditor Squires Lumber Company (Creditor) for order of assignment of payments, for order restraining judgment debtor from assigning or otherwise disposing of the right to payment, and for order compelling accountings. As more fully set forth below the motion is DENIED WITHOUT PREJUDICE.